2013 MAR 25 PM 3:31

FILE DO NOT MAIL

Real Estate Transfer Tax
County: $63.80
State: $0.00
Receipt: 209143
Stamp: 295222

Bernard J. Youngblood
Wayne County Register of Deeds
March 25, 2013 03:31 PM
Inst:2013211070 SHD Pages:6
Liber:50672 Page:1340

SHERIFF'S DEED ON MORTGAGE SALE

This Indenture Made the **14th** day of **March** A.D. **2013**, between La Shana Cooper, a Deputy Sheriff in and for **Wayne** County, Michigan, party of the first part, and **Green Tree Servicing LLC, 1400 Turbine Dr., Rapid City, SD 57701**, party of the second part (hereinafter called the grantee).

WITNESSETH, That Whereas **Amelia Mata . a single woman, 4348 51ST ST DETROIT MI 48210** , made a certain mortgage to **Mortgage Electronic Registration Systems, Inc (MERS) as nominee for Countrywide Bank FSB** (hereinafter called the mortgagee), which was duly recorded in the office of the Register of Deeds in and for said **Wayne** County in Liber 47097 of **Wayne** County Records, on Page **1261**, and was assigned by said mortgagee to **Green Tree Servicing LLC** , as assignee, said assignment having been recorded with **Wayne** County Records, and

WHEREAS, the party foreclosing the mortgage has represented that it is either the owner of the indebtedness or the owner of an interest in the indebtedness secured by the mortgage or the servicing agent of the mortgage, and

WHEREAS, said mortgage contained a power of sale which has become operative by reason of a default in the condition of said mortgage, and

WHEREAS, no suit or proceedings at law or in equity have been instituted to recover the debt secured by said mortgage or any part thereof, and

WHEREAS, by virtue of said power of sale, and pursuant to the statute of the State of Michigan in such case made and provided, a notice was duly published and a copy thereof was duly posted in a conspicuous place upon the premises described, in said mortgage that the said premises, including any and all structures and homes, manufactured, or otherwise, located thereon would be sold on the **14th** day of **March** A.D. **2013 Notice is hereby given that said mortgage will be foreclosed by a sale of the mortgaged premises, or some part of them, at public venue in the Coleman A. Young Municipal Center in Detroit in Wayne County** that being the place of holding the Circuit Court for **Wayne** County where the premises are situated and

WHEREAS, pursuant to said notice I did, at **11:00 AM**, in the forenoon, on the day last aforesaid, expose for sale at public venue the said lands and tenements hereinafter described, and on such sale did strike off and sell the said lands and tenements to the grantee for the sum of **Fifty Seven Thousand Seven Hundred Eighty Six & 18/100 ($57,786.18)**, that being the highest bid therefore and the grantee being the highest bidder, and

WHEREAS, said lands and tenements are situated in the **City of Detroit** of **Wayne** County, Michigan, more particularly described as follows:

Lot 202, Conrad Clippert's Subdivision, according to the plat thereof as recorded in Liber 28, Page 33, of plats, Wayne County Records.

C/K/A: **4348 51ST STREET , DETROIT, MI 48210**

Tax I.D. # **WARD 18 ITEM 011735**

Now, this Indenture Witnesseth, That I, the Deputy Sheriff aforesaid, by virtue of and pursuant to the statute in such case made and provided, and in consideration of the sum of money so paid as aforesaid, have granted, conveyed, bargain and sell unto the grantee, its successors and assigns forever, all the estate, right, title and interest which the said Mortgagor(s) had in said land and tenements and every part thereof, on the **6th** day of **February**, A.D. **2008**, that being the date of said mortgage, or at any time thereafter, to have and to hold the said lands and tenements and every part thereof to the said grantee, its successors and assigns forever, to their sole and only use, benefit and behoove forever, as fully and absolutely I, the Deputy Sheriff aforesaid, under the authority aforesaid, might, could or ought to sell the same.

IN WITNESS WHEREOF, I have hereunto set my hand and seal, the date and year first above written.

Deputy Sheriff in and for the County of **Wayne** La Shana Cooper

Signed, Sealed and Delivered in the Presence of

STATE OF MICHIGAN
COUNTY OF **Wayne** ss.

On this **14th** day of **March** A.D. **2013** before me, a Notary Public in and for said County of **Wayne** came La Shana Cooper a Deputy sheriff of said County, known to me to be the individual described in and who executed the above conveyance, and who acknowledged that (s)he executed the same to be his(hers) free act and deed as such Deputy Sheriff.

Notary Public

Wayne County

Commission Expires

Adrienne Sanders
Notary Public State of Michigan
County of Wayne
My Commission Expires Oct. 9, 2013

Exempt from Michigan State Transfer Tax
MCL 207.526(v)
GTSD FNMA Mata

ORIGINAL

13-1607

(Affidavit of Auctioneer)
STATE OF MICHIGAN,
COUNTY OF **Wayne** ss.

La Shana Cooper, Being duly sworn, deposes and says that (s)he is a Deputy Sheriff of said **Wayne** County; that (s)he acted as Auctioneer, and made the sale as described in the annexed Deed pursuant to the annexed printed notice: that said sale was opened at **11:00 AM**o'clock of the **14th** day of **March** A.D. **2013 Notice is hereby given that said mortgage will be foreclosed by a sale of the mortgaged premises, or some part of them, at public venue in the Coleman A. Young Municipal Center in Detroit in Wayne County** that being the place of holding the Circuit Court in said **Wayne** County, and said sale was kept open for the space of one hour; that the highest bid for the lands and tenements therein described was the sum of **$57,786.18** made by **Green Tree Servicing LLC** that said sale was in all respects open and fair; and that (s)he did strike off and sell said lands and tenements to said bidders, which purchase the said lands and tenements fairly, and in good faith, as deponent verily believes.

Deputy Sheriff in and for **Wayne** County La Shana Cooper
Subscribed and sworn to before me this **14th** day of **March** A.D. **2013**

Notary Public, **Wayne** County, Michigan
My commission expires _____.

Adrienne Sanders
Notary Public State of Michigan
County of Wayne
My Commission Expires Oct. 9, 2013

STATE OF MICHIGAN,
COUNTY OF **Wayne** ss.

I DO HEREBY CERTIFY, That the within Sheriff's Deed will become operative at the expiration of **six (6) months** from the date of such sale, unless determined abandoned in accordance with 1948CL 600.3241a, in which case the redemption period shall be 30 days from the date of such sale, unless redeemed according to the law, in such case made and provided. The deadline to redeem the sale is 9/14/2013 at which time the Sheriff's Deed will become operative.

Deputy Sheriff for **Wayne** County, Michigan
La Shana Cooper

This instrument drafted by:
Jonathan L. Engman - **Fabrizio & Brook, P.C.**
888 W. Big Beaver Rd., Ste 800
Troy, MI 48084

NON-MILITARY AFFIDAVIT

State of Michigan
County of Oakland} ss

The undersigned, being first duly sworn, deposes and says that upon investigation he is informed and believes that none of those persons named in the attached notice of mortgage foreclosure were in the military of the United States at the time of sale of for six months prior thereto; nor the present grantee(s).

Deponent further states that this affidavit is made for the purpose of preserving a record and clearing title by virtue of the Soldiers' and Sailors Civil Relief Act of 1940, as a needed.

Name: Taylor Probst
Employee of Fabrizio & Brook, P.C.
Attorney Firm representing Green Tree Servicing LLC

Subscribed and sworn to me this 11th day of March AD. 2013.

Erin Goodrich
Notary Public, Macomb County acting in Oakland County, Michigan
My Commission expires: 11/26/2018

ERIN GOODRICH
NOTARY PUBLIC, STATE OF MI
COUNTY OF MACOMB
MY COMMISSION EXPIRES Nov 26, 2018
ACTING IN COUNTY OF

GTSD FNMA Mata

Fabrizio - Amelia Mata

FABRIZIO & BROOK, P.C. Attorneys 888 W. Big Beaver, Suite 800 Troy, MI 48084 AS A DEBT COLLECTOR, WE ARE ATTEMPTING TO COLLECT A DEBT AND ANY INFORMATION OBTAINED WILL BE USED FOR THAT PURPOSE. NOTIFY US AT THE NUMBER BELOW IF YOU ARE IN ACTIVE MILITARY DUTY. MORTGAGE SALE - Default having been made in the terms and conditions of a certain mortgage made by Amelia Mata , a single woman, Mortgagors, to Mortgage Electronic Registration Systems, Inc (MERS) as nominee for Countrywide Bank FSB, Mortgagee, dated the 6th day of February, 2008 and recorded in the office of the Register of Deeds, for The County of Wayne and State of Michigan, on the 27th day of March, 2008 in Liber 47097 of Wayne County Records, page 1261, said Mortgage having been assigned to Green Tree Servicing LLC on which mortgage there is claimed to be due, at the date of this notice, the sum of Sixty Three Thousand Six Hundred Eighty & 24/100 ($63,680.24), and no suit or proceeding at law or in equity having been instituted to recover the debt secured by said mortgage or any part thereof. Now, therefore, by virtue of the power of sale contained in said mortgage, and pursuant to statute of the State of Michigan in such case made and provided, notice is hereby given that on the 14th day of March, 2013 at 11:00 AM o'clock Local Time, said mortgage will be foreclosed by a sale at public auction, to the highest bidder, Notice is hereby given that said mortgage will be foreclosed by a sale of the mortgaged premises, or some part of them, at public venue in the Coleman A. Young Municipal Center in Detroit in Wayne County MI (that being the building where the Circuit Court for the County of Wayne is held), of the premises described in said mortgage, or so much thereof as may be necessary to pay the amount due, as aforesaid on said mortgage, with interest thereon at 6.625 per annum and all legal costs, charges, and expenses, including the attorney fees allowed by law, and also any sum or sums which may be paid by the undersigned, necessary to protect its interest in the premises. Which said premises are described as follows: All that certain piece or parcel of land, including any and all structures, and homes, manufactured or otherwise, located thereon, situated in the City of Detroit, County of Wayne, State of Michigan, and described as follows, to wit: Lot 202, Conrad Clippert's Subdivision, according to the plat thereof as recorded in Liber 28, Page 33, of plats, Wayne County Records. During the six (6) months immediately following the sale, the property may be redeemed, except that in the event that the property is determined to be abandoned pursuant to MCLA 600.3241a, the property may be redeemed during 30 days immediately following the sale. Pursuant to MCLA 600.3278, the mortgagor(s) will be held responsible to the person who buys the property at the foreclosure sale or to the mortgage holder for damaging the property during the redemption period. Dated: 2/11/2013 Green Tree Servicing LLC Mortgagee FABRIZIO & BROOK, P.C. Attorney for Green Tree Servicing LLC 888 W. Big Beaver, Suite 800 Troy, MI 48084 248-362-2600 GTSD FNMA Mata (2-11)(3-4)

AFFIDAVIT OF PUBLICATION

(Affidavit of Publisher)

STATE OF MICHIGAN,
ss.
COUNTY OF OAKLAND

The undersigned, an employee of the publisher of Detroit Legal News, having knowledge of the facts, being duly sworn deposes and says that a notice, a true copy of which is annexed hereto, was published in Detroit Legal News a newspaper circulated in Wayne County on February 11, February 18, February 25, March 4, 2013 A.D.

Cindy C. Lawler

Subscribed and sworn before me on this 4th day of March 2013 A.D.

Jennifer Dado

Notary Public Oakland County, Michigan. My commission expires: January 25, 2019 Acting in Oakland County, Michigan.

FNMA

Attorney:	Fabrizio & Brook, P.C. - Fabrizio & Brook, P.C. Wayne
AttorneyFile#:	GTSD FNMA
Notice#:	1124579

AS A DEBT COLLECTOR, WE ARE ATTEMPTING TO COLLECT A DEBT AND ANY INFORMATION OBTAINED WILL BE USED FOR THAT PURPOSE. NOTIFY US AT THE NUMBER BELOW IF YOU ARE IN ACTIVE MILITARY DUTY.

MORTGAGE SALE - Default having been made in the terms and conditions of a certain mortgage made by Amelia Mata , a single woman, Mortgagors, to Mortgage Electronic Registration Systems, Inc (MERS) as nominee for Countrywide Bank FSB, Mortgagee, dated the 6th day of February, 2008 and recorded in the office of the Register of Deeds, for The County of Wayne and State of Michigan, on the 27th day of March, 2008 in Liber 47097 of Wayne County Records, page 1261, said Mortgage having been assigned to Green Tree Servicing LLC on which mortgage there is claimed to be due, at the date of this notice, the sum of Sixty Three Thousand Six Hundred Eighty & 24/100 ($63,680.24), and no suit or proceeding at law or in equity having been instituted to recover the debt secured by said mortgage or any part thereof. Now, therefore, by virtue of the power of sale contained in said mortgage, and pursuant to statute of the State of Michigan in such case made and provided, notice is hereby given that on the **14th** day of **March**, **2013** at 11:00 AM o'clock Local Time, said mortgage will be foreclosed by a sale at public auction, to the highest bidder, Notice is hereby given that said mortgage will be foreclosed by a sale of the mortgaged premises, or some part of them, at public venue in the Coleman A. Young Municipal Center in Detroit in Wayne County MI (that being the building where the Circuit Court for the County of Wayne is held), of the premises described in said mortgage, or so much thereof as may be necessary to pay the amount due, as aforesaid on said mortgage, with interest thereon at 6.625 per annum and all legal costs, charges, and expenses, including the attorney fees allowed by law, and also any sum or sums which may be paid by the undersigned, necessary to protect its interest in the premises. Which said premises are described as follows: All that certain piece or parcel of land, including any and all structures, and homes, manufactured or otherwise, located thereon, situated in the City of Detroit, County of Wayne, State of Michigan, and described as follows, to wit:

Lot 202, Conrad Clippert's Subdivision, according to the plat thereof as recorded in Liber 28, Page 33, of plats, Wayne County Records.

During the six (6) months immediately following the sale, the property may be redeemed, except that in the event that the property is determined to be abandoned pursuant to MCLA 600.3241a, the property may be redeemed during 30 days immediately following the sale.

Pursuant to MCLA 600.3278, the mortgagor(s) will be held responsible to the person who buys the property at the foreclosure sale or to the mortgage holder for damaging the property during the redemption period.

Dated: 2/11/2013
Green Tree Servicing LLC
Mortgagee

FABRIZIO & BROOK, P.C.
Attorney for Green Tree Servicing LLC
888 W. Big Beaver Suite 800 Troy, MI 48084
248-362-2600
GTSD FNMA Mata

Commonly known as 4348 51ST STREET DETROIT, MI 48210

EVIDENCE OF SALE
(Affidavit of Posting)

STATE OF MICHIGAN
ss.
COUNTY OF OAKLAND

Martin Derenge being duly sworn, deposes that on the 19th day of February, 2013 A.D. he posted a notice, a true copy is annexed hereto, in a conspicuous place upon the premises described in said notice by attaching the same in a secure manner to the front door.

Martin J. Derenge

Subscribed and sworn before me on this 25 day of February, 2013 A.D.

M.L. WHALEN
NOTARY PUBLIC, STATE OF MI
COUNTY OF GENESEE
MY COMMISSION EXPIRES Aug 27, 2018
ACTING IN COUNTY OF Oakland

AFFIDAVIT OF COMPLIANCE

STATE OF MICHIGAN)
) SS
COUNTY OF OAKLAND)

Taylor Probst, being first duly sworn, deposes and says:

1. That (s)he is an employee of Fabrizio & Brook, P.C., the firm retained by Green Tree Servicing LLC and is familiar with the facts set forth herein.

2. This Affidavit is being filed to show compliance with MCL 600.3204 and 600.3205 with regard to the foreclosure by advertisement on the property located at 4348 51ST STREET , DETROIT, MI 48210. Said property is located in the City of Detroit, County of Wayne, and State of Michigan and has the following legal description:

Lot 202, Conrad Clippert's Subdivision, according to the plat thereof as recorded in Liber 28, Page 33, of plats, Wayne County Records..

3. That upon information and belief the home located at the above residence is the principal residence of the borrower(s).

4. That in processing the foreclosure for the above mortgage, Fabrizio & Brook, P.C., mailed a written notice to the borrower(s) pursuant to MCL 600.3205a(1) and (2).

5. That neither the borrower(s) nor a housing counselor requested the authorized Designee to set up a meeting to modify the mortgage, within the required time period as set forth in MCL 600.3205a(1)(d).

6. That more than 30 days passed since the written Notice was sent to the borrower(s) pursuant to MCL 600.3205a(1) and (2).

7. That the Notice of Foreclosure was not published until Fabrizio & Brook, P.C. complied with MCL 600.3204(4).

Dated: 3/11/2013

T Probst

Taylor Probst
Employee of Fabrizio & Brook, P.C.

Subscribed and sworn to before me this 11th day of March 2013.

Erin Goodrich
Notary Public, Macomb County acting in Oakland County, Michigan
My Commission expires: 11/26/2018

Prepared by and when recorded return to:
Fabrizio & Brook, P.C. -Jonathan L. Engman
888 W. Big Beaver Rd., #800
Troy, Michigan 48084

ERIN GOODRICH
NOTARY PUBLIC, STATE OF MI
COUNTY OF MACOMB
MY COMMISSION EXPIRES Nov 26, 2018
ACTING IN COUNTY OF

GTSD FNMA Mata

AFFIDAVIT OF AMOUNT NEEDED TO REDEEM PROPERTY FROM SALE

State of Michigan
County of Oakland} ss

The amount needed to redeem the property from sale is the sum that was bid for the entire premises sold, with interest from the date of the sale at the interest rate provided for by the mortgagee, Green Tree Servicing LLC, together with the amount of the sheriff's fee paid by the purchaser under section 2558(2)(q), and an additional $5.00 as a fee for the care and custody of the redemption money if the payment is made to the register of deeds.

The redemption figure is $57,786.18 plus $10.49 a day for each day following the sale up to the last day of the redemption period.

If the foreclosing mortgagee purchases the property at the sale, it nominates Fabrizio & Brook, P.C., 888 W. Big Beaver, Ste. 800, Troy, MI 48084 as its designee to assist in computing the exact amount required to redeem the property and accept redemption funds. Fabrizio & Brook, P.C. will charge $280.00 for this service to be paid by the person redeeming the property. The deadline to redeem the sale is 9/14/2013 at which time the Sheriff's Deed will become operative. Any sums paid after the Sale date for redemption of senior liens, taxes or insurance will be added to the amount needed to redeem.

Taylor Probst
Employee of Fabrizio & Brook, P.C.
Attorney Firm representing Green Tree Servicing LLC
888 W. Big Beaver Rd., #800
Troy, MI 48084
248-362-2600

Subscribed and sworn to before me this 11th day of March 2013.

Erin Goodrich
Notary Public, Macomb County acting in Oakland County, Michigan
My Commission expires: 11/26/2018

Prepared by and when recorded return to:
Fabrizio & Brook, P.C. -Jonathan L. Engman
888 W. Big Beaver Rd., #800
Troy, Michigan 48084

ERIN GOODRICH
NOTARY PUBLIC, STATE OF MI
COUNTY OF MACOMB
MY COMMISSION EXPIRES Nov 26, 2018
ACTING IN COUNTY OF

GTSD FNMA Mata